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LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Tuesday, July 28, 2026

Calendar No.

PROCEEDINGS

Valerio

Jose Oletta Cedres, et al. v. Beach Front Property Management, Inc., et al.

25TRCV04103

1. Beach Front Property Management, Inc., et al.'s

Demurrer to Complaint

2.

Beach Front

Property Management, Inc., et al.'s Motion to Strike Portions of Complaint

TENTATIVE RULING

Beach Front Property Management, Inc., et al.'s

Demurrer to Complaint is overruled, in part, and sustained with 20 days leave to amend, in part.

Beach Front Property Management, Inc., et al.'s Motion to Strike Portions of Complaint is denied.

Background

Plaintiffs' Complaint was filed on December 3, 2025.

Plaintiffs allege the following facts. Plaintiffs were tenants of a property located at 26019 Oak Street Apt. #32, Lomita, CA 90717. The property suffered from numerous habitability problems including cockroach infestations, mold and/or suspected mold, damaged kitchen cabinets, torn window screens, chipped paint, deteriorating flooring and baseboards, and holes in the walls. Plaintiffs allege the following causes of action: 1. Statutory Breach of the Warranty of Habitability (Civil Code §§ 1941, 1941.1) 2. Breach of the Implied Warranty of Habitability; 3. Violation of Civil Code § 1942.4 (35 Days) 4. Violation of Civil Code § 1942.5 (Retaliation After Complaint Being Made) 5. Negligence; 6. Nuisance; 7. Intentional Infliction of Emotional Distress; 8. Breach of Contract; 9. Breach of the Covenant of Quiet Enjoyment; 10. Breach of the Covenant of Good Faith and Fair Dealing; 11. Violation of Business & Professions Code § 17200, et seq 12. Violation of LAMC § 45.33.

Meet and Confer

Defendants set forth meet and confer declarations in sufficient compliance with CCP § 430.41 and CCP § 435.5. (Decls. Benjamin N. Long.)

Demurrer

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The Court may not consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.App.4th 634, 638.) Because a demurrer tests the legal sufficiency of a complaint, the plaintiff must show that the complaint alleges facts sufficient to establish

every element of each cause of action. (Rakestraw v. California Physicians Service (2000) 81 Cal.App.4th 39, 43.) Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. (C.C.P., § 430.10(e); Zelig v. County of Los Angeles (2002) 27 Cal.App.4th 1112, 1126.)

Sufficient facts are

the essential facts of the case "with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643-644.) "Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer." (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609-610.) Under Code Civil Procedure § 430.10(f), a demurrer may also be sustained if a complaint is "uncertain." Uncertainty exists where a complaint's factual allegations are so confusing they do not sufficiently apprise a defendant of the issues it is being asked to meet. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.)

Defendants demur to

the third, fourth, seventh, eleventh, and twelfth causes of action of the Complaint pursuant to CCP § 430.10(e) on the grounds that the causes of action fail to state sufficient facts.

Third Cause of

Action for Violation of Civil Code § 1942.4 (35 Days)

Defendants'

demurrer to the third cause of action is sustained with 20 days leave to amend. Plaintiffs fail to state sufficient facts to state a cause of action.

Civ. Code, § 1942.4

states:

"(a) A landlord of a dwelling may not demand rent, collect rent, issue a notice of a rent increase, or issue a three-day notice to pay rent or quit pursuant to subdivision (2) of Section 1161 of the Code of Civil Procedure, if all of the following conditions exist prior to the landlord's demand or notice:

(1) The dwelling

substantially lacks any of the affirmative standard characteristics listed in Section 1941.1 or violates Section 17920.10 of the Health and Safety Code, or is deemed and declared substandard as set forth in Section 17920.3 of the Health and Safety Code because conditions listed in that section exist to an extent that endangers the life, limb, health, property, safety, or welfare of the public or the occupants of the dwelling.

(2) A public officer

or employee who is responsible for the enforcement of any housing law, after inspecting the premises, has notified the landlord or the landlord's agent in writing of his or her obligations to abate the nuisance or repair the substandard conditions.

(3) The conditions

have existed and have not been abated 35 days beyond the date of service of the notice specified in paragraph (2) and the delay is without good cause. For purposes of this subdivision, service shall be complete at the time of deposit in the United States mail.

(4) The conditions

were not caused by an act or omission of the tenant or lessee in violation of Section 1929 or 1941.2.

(b)(1) A landlord who

violates this section is liable to the tenant or lessee for the actual damages sustained by the tenant or lessee and special damages of not less than one hundred dollars (\$100) and not more than five thousand dollars (\$5,000).

(2) The prevailing

party shall be entitled to recovery of reasonable attorney's fees and costs of the suit in an amount fixed by the court.

(c) Any court that

awards damages under this section may also order the landlord to abate any nuisance at the rental dwelling and to repair any substandard conditions of the rental dwelling, as defined in Section 1941.1, which significantly or materially affect the health or safety of the occupants of the rental dwelling and are uncorrected. If the court orders repairs or corrections, or both, the court's jurisdiction continues over the matter for the purpose of ensuring

compliance.

(d) The tenant or lessee shall be under no obligation to undertake any other remedy prior to exercising his or her rights under this section.

(e) Any action under this section may be maintained in small claims court if the claim does not exceed the jurisdictional limit of that court.

(f) The remedy provided by this section may be utilized in addition to any other remedy provided by this chapter, the rental agreement, lease, or other applicable statutory or common law. Nothing in this section shall require any landlord to comply with this section if he or she pursues his or her rights pursuant to Chapter 12.75 (commencing with Section 7060) of Division 7 of Title 1 of the Government Code.”

Plaintiffs fail to plead facts to satisfy Section 1942.4(a)(2): “(2) A public officer or employee who is responsible for the enforcement of any housing law, after inspecting the premises, has notified the landlord or the landlord's agent in writing of his or her obligations to abate the nuisance or repair the substandard conditions.” Plaintiffs simply set forth a conclusion stating that the conditions were cited by government agencies and unabated for 35 days without specific facts to demonstrate that a public employee inspected the premises, notified the landlord in writing of the obligations, and, then, that Defendants did not abate the issues within the mandated time frame.

Thus, the demurrer to the third cause of action is sustained with 20 days leave to amend.

Fourth Cause of Action for Violation of Civil Code § 1942.5 (Retaliation After Complaint Being Made)

Defendants' demurrer to the fourth cause of action is overruled. Plaintiffs state sufficient facts to state a cause of action and the cause of action is not uncertain.

Civ. Code, § 1942.5 states, in relevant part:

“(a) If the lessor retaliates against the lessee because of the exercise by the lessee of the lessee's rights under this chapter or because of the lessee's complaint to an appropriate agency as to tenantability of a dwelling, and if the lessee of a dwelling is not in default as to the payment of rent, the lessor may not recover possession of a dwelling in any action or proceeding, cause the lessee to quit involuntarily, increase the rent, or decrease any services within 180 days of any of the following:

(1) After the date upon which the lessee, in good faith, has given notice pursuant to Section 1942, has provided notice of a suspected bed bug infestation, or has made an oral complaint to the lessor regarding tenantability.

(2) After the date upon which the lessee, in good faith, has filed a written complaint, or an oral complaint which is registered or otherwise recorded in writing, with an appropriate agency, of which the lessor has notice, for the purpose of obtaining correction of a condition relating to tenantability.

(3) After the date of an inspection or issuance of a citation, resulting from a complaint described in paragraph (2) of which the lessor did not have notice.

(4) After the filing of appropriate documents commencing a judicial or arbitration proceeding involving the issue of tenantability.

(5) After entry of judgment or the signing of an arbitration award, if any, when in the judicial proceeding or arbitration the issue of tenantability is determined adversely to the lessor.”

Plaintiffs

have alleged facts stating that they made oral and written complaints to the lessor about the uninhabitable conditions. (Complaint, ¶¶ 25, 28, 32, 36, 38, 52-69, 81-83, 91-95.) Plaintiffs also allege that formal notices of the conditions

were made to the County of Los Angeles Department of Public Health to report the uninhabitable conditions. (Complaint, ¶¶ 66, 69). Plaintiffs allege that Defendant decreased services available to Plaintiffs including pest control services and maintenance services within 180 days of Plaintiffs' notices. (Id.) Plaintiffs have also alleged facts to demonstrate an inference of a causal connection between the complaints and notices and the decrease in services. (Id. at ¶¶ 66-69, 139-141). Thus, sufficient facts were set forth to state this cause of action.

Therefore, the demurrer to the fourth cause of action is overruled.

Seventh Cause of Action for IIED

Defendants' demurrer to the seventh cause of action is overruled. Plaintiffs state sufficient facts to state the cause of action.

"A cause of action for IIED requires proof of: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff suffered severe emotional distress; and (3) the defendant's extreme and outrageous conduct was the actual and proximate cause of the severe emotional distress." *Crouch v. Trinity Christian Center of Santa Ana, Inc.* (2019) 39 Cal.App.5th 995, 1007.

"[I]t is clear that the availability of a remedy for breach of implied warranty of habitability does not preclude a tenant from suing his landlord for intentional infliction of mental distress if the landlord's acts are extreme and outrageous and result in severe mental distress." *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 921. "Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff's interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress." *Id.*

Plaintiffs have pleaded

facts alleging extreme and outrageous conduct on the part of Defendants with the intent of causing or with reckless disregard of causing emotional distress as well as causation of emotional distress. (Complaint, ¶¶ 175-203). Plaintiffs have alleged facts that Defendants knew that Plaintiffs were allegedly suffering from on-going mental distress injuries due to the dilapidated conditions including pest infestation, yet Defendants repeatedly failed to remedy the condition. (Complaint, 185-195). These allegations are sufficient to show that Defendants abused a position of power, that Defendants knew that Plaintiffs were susceptible to injuries through emotional distress, and that Defendants acted intentionally or unreasonably knowing that it would likely cause emotional distress. The factual allegations are sufficient to state the elements of extreme and outrageous conduct and reckless disregard for purposes of IIED. Plaintiffs have also alleged sufficient facts of causation of severe emotional distress. (Complaint, ¶ 203). "Where reasonable [minds] may differ, it is for the jury, subject to the control of the court, to determine whether, in the particular case, the conduct has been sufficiently extreme and outrageous to result in liability." *Fuentes v. Perez* (1977) 66 Cal.App.3d 163, 172.

Thus, the demurrer to the seventh cause of action is overruled.

Eleventh Cause
of Action for Violation of Business & Professions Code § 17200, et seq.

Defendants'
demurrer to the eleventh cause of action is overruled. Plaintiffs state sufficient facts to state a cause of action.

"California
Business and Professions Code Sections 17000, et seq., and 17200, et seq., states [sic] that unfair competition shall mean and include unlawful, unfair or fraudulent business practices." *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 618–19. "By proscribing 'any unlawful' business act or practice, the UCL 'borrows' rules set out in other laws and makes violations of those rules independently actionable. [Citation.] However, a practice may violate the UCL even if it is not prohibited by another statute." *Los Angeles Memorial Coliseum Com. v. Insomniac, Inc.* (2015) 233 Cal.App.4th 803, 835. "The unfair competition law is independent of the Unfair Practices Act and other laws. Its remedies are 'cumulative ... to the remedies or

penalties available under all other laws of this state" (§ 17205), but its sanctions are less severe than those of the Unfair Practices Act. Prevailing plaintiffs are generally limited to injunctive relief and restitution. (§ 17203; see *ABC Internat. Traders, Inc. v. Matsushita Electric Corp.* (1997) 14 Cal.4th 1247, 1268 [61 Cal.Rptr.2d 112, 931 P.2d 290].) Plaintiffs may not receive damages, much less treble damages, or attorney fees." *Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 179.

"Restitution

under section 17203 is confined to restoration of any interest in "money or property, real or personal, which may have been acquired by means of such unfair competition." (Italics added.) A restitution order against a defendant thus requires both that money or property have been lost by a plaintiff, on the one hand, and that it have been acquired by a defendant, on the other. But the economic injury that an unfair business practice occasions may often involve a loss by the plaintiff without any corresponding gain by the defendant, such as, for example, a diminishment in the value of some asset a plaintiff possesses. Such injuries satisfy the plain meaning of section 17204's "lost money or property" requirement, qualify as injury in fact, and would permit a plaintiff to seek an injunction against the offending business practice even in the absence of any basis for restitution. [¶] This leads to a larger point: To make standing under section 17204 dependent on eligibility for restitution under section 17203 would turn the remedial scheme of the UCL on its head. Injunctions are "the primary form of relief available under the UCL to protect consumers from unfair business practices," while restitution is a type of "ancillary relief." *Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310, 336–337 (internal citations omitted).

Plaintiffs

have alleged facts of an unlawful or unfair business practice pursuant to the alleged statutory violations and tort and contract claims in the first, second, and fourth through tenth causes of action. Plaintiffs have alleged injury in fact through lost money from rent payments made when Plaintiffs contend that they should not have been required to make those payments.

The

demurrer to the eleventh cause of action is overruled.

Twelfth Cause of Action for

Violation of LAMC § 45.33

Defendants' demurrer

is sustained with 20 days leave to amend. Plaintiffs fail to allege sufficient facts to state a cause of action.

Defendants argue that

LAMC § 45.33 does not apply to the property in question because the property is located in Lomita, California and not in the city of Los Angeles. Plaintiffs presented no argument in response to Defendants' demurrer to the twelfth cause of action.

Thus, the demurrer to

the twelfth cause of action is sustained with 20 days leave to amend.

Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. CCP § 436(a).

The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. CCP § 436(b). The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. CCP § 436. The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. CCP § 437.

Defendants move to strike the following:

"1. Paragraph 41, to the extent it alleges
"intentional, malicious, willful and reckless conduct";

2. Paragraphs 101 through 104, entitled
"Punitive Damages are Warranted," in their entirety;

3. Paragraphs 129 through 131, including
all allegations that Defendants acted with "recklessness," "intent," or
"despicable, malicious, and oppressive conduct," and any reference to Civil
Code section 3294;

4. Paragraphs 144 through 146, to the extent they allege “willful, malicious and oppressive conduct” and seek punitive damages;

5. Paragraph 157, to the extent it alleges “malicious, oppressive, and despicable conduct”

6. Paragraphs 173 and 174, to the extent they allege “oppressive and malicious” conduct and seek punitive damages;

7. All portions of the Seventh Cause of Action for Intentional Infliction of Emotional Distress that seek or rely upon conclusory allegations of “malice,” “oppression,” or “despicable conduct” as a basis for punitive damages;

8. From the Prayer for Relief, any and all requests for punitive or exemplary damages.” (Notice of Motion, p. 1, line 27 to p. 2, line 14).

Defendants’ motion to strike the allegations and prayer for punitive damages is denied.

Civ. Code, § 3294 states, in relevant part:

“(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.

(b) An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice

must be on the part of an officer, director, or managing agent of the corporation.”

“[I]t is clear that the availability of a remedy for breach of implied warranty of habitability does not preclude a tenant from suing his landlord for intentional infliction of mental distress if the landlord's acts are extreme and outrageous and result in severe mental distress.” *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 921. “Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff's interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress.” *Id.* “[I]f the tenant wrongfully evicted elects to sue in tort, damages may be awarded for mental anguish and pain or physical injury; exemplary damages may also be recovered when the landlord's conduct justifies the award[.]” *Id.* at 926.

Plaintiffs have alleged sufficient specific facts that Defendants acted with malice, oppression, and/or fraud to support the allegations and prayer for punitive damages. The allegations already highlighted in detail above in connection with the demurrer to the IIED cause of action provide the requisite facts to allege that Defendants acted with the conscious disregard for the rights or safety of Plaintiffs.

Defendants' motion to strike is denied.

Plaintiffs are ordered to give notice of this ruling.